

3.

CASE #	CASE NAME	HEARING NAME
CVPS2506122	DOG HOUSE PASEO DEL REY, LLC VS CANYON ESTATES HOMEOWNERS ASSOCIATION	DEFENDANTS CANYON ESTATES HOME OWNERS ASSOCIATION, DESERT RESORT MANAGEMENT, INC. DBA ASSOCIA DESERT RESORT MANAGEMENT, NANCY BURKE, MICHAEL WALLACE AND RANDALL WELSH'S MOTION TO STRIKE AS TO PLAINTIFFS' THIRD AMENDED COMPLAINT

Tentative Ruling:

The motion to strike fails to comply with CRC rule 3.1322(a), putting the onus on the court to identify and number requests for ruling.

Accordingly the motion to strike is denied in its entirety.

Defendants' Motion to Strike DENIED.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2506122	DOG HOUSE PASEO DEL REY, LLC VS CANYON ESTATES HOMEOWNERS ASSOCIATION	MOTION FOR LEAVE TO AMEND 3RD AMENDED COMPLAINT FOR BREACH OF CONTRACT/WARRANTY OF DOG HOUSE PASEO DEL REY, LLC BY DOG HOUSE PASEO DEL REY, LLC, MICHAEL WILLIAMS, AS TRUSTEE TO THE BRAD ROBERT PRESCOTT LIVING TRUST, MICHAEL WILLIAMS, BRIAN HARP KRAFT, TRUSTEE TO THE BRIAN HARP KRAFT LIVING TRUST

Tentative Ruling: C.C.P. §473 authorizes the court to grant leave to amend any pleading "in furtherance of justice, and on such terms as may be proper." A motion for relief under CCP § 473 is addressed to the sound discretion of the trial court, and the exercise of that discretion will not be disturbed on appeal unless there is a clear showing that it was abused. (*Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 897-898; *Record v. Reason* (1999) 73 Cal.App.4th 472, 486.)3.1324(b).

California courts have developed "a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others." (*Dunzweiler v. Superior Court* (1968) 267 Cal.App.2d 569, 576.) Thus, if a motion is timely and the amended pleading will not prejudice the opposing party, it is error not to allow leave to amend. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048;